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Case Number: 24PSCV01203 Hearing Date: June 24, 2026 Dept: G

Plaintiff Los Angeles County Metropolitan

Transportation Authority's Motion for Determination of Legal Issues Re:

Impairment of Access

Respondent:

Defendants Russell L. Fox and Linda K. Fox

TENTATIVE

RULING

Plaintiff

Los Angeles County Metropolitan Transportation Authority's Motion for

Determination of Legal Issues Re: Impairment of Access is DENIED.

BACKGROUND

This

is an eminent domain action. Plaintiff

Los Angeles County Metropolitan Transportation Authority (LA Metro) seeks to

acquire a property in the City of Industry near Valley Boulevard and Interstate

605 for the purpose of constructing a maintenance road. LA Metro alleges the City of Industry

property is owned by defendants Russell L. Fox and Linda K. Fox (collectively,

the Foxes), trustees of the Fox Family Trust dated July 12, 2001 (Fox Trust).

On

April 16, 2024, LA Metro filed the Complaint for eminent domain against the

Foxes as trustees of the Fox Trust, all persons unknown, and Does 1 to 50.

On

July 8, 2024, the Foxes filed the Answer.

(On July 1, 2025, the court granted LA Metro's motion for judgment on

the pleadings with leave to amend as to paragraphs 8 and 11 of the Answer and

without leave to amend as to paragraph 12.)

On July 21, 2025, the Foxes filed the operative Amended Answer. (On February 19, 2026, the Foxes withdrew the

affirmative defense raised by paragraph 11 of the Amended Answer, and on March

11, 2026, the court granted LA Metro's motion for summary adjudication as to the

affirmative defenses raised by paragraphs 7, 8, and 9 of the Amended Answer.)

On

January 7, 2025, LA Metro filed this motion for determination. On May 29, 2026, the Foxes filed the

opposition, and on June 4, 2026, LA Metro filed the reply.

The

motion is set for hearing on June 24, 2026.

ANALYSIS

LA

Metro moves for judicial determination of whether the property directly abuts

the street, and even if it does, whether the property has a legal means of

accessing the street.

For

the following reasons, the court DENIES the motion.

Legal

Standard

“If

there is a dispute between plaintiff and defendant over an evidentiary or other

legal issue affecting the determination of compensation, either party may move

the court for a ruling on the issue. The

motion shall be made not later than 60 days before commencement of trial on the

issue of compensation.” (Code Civ.

Proc., § 1260.040, subd. (a).) Review of

a motion filed under Section 1260.040 is “the equivalent of ruling on a motion

for nonsuit.” (Dina v. Dept. of

Transportation (2007) 151 Cal.App.4th 1029, 1047.) Under that standard, the court does not weigh

evidence or make credibility determinations.

(See *Darbut Enterprises, Inc. v. San Fernando Community Hospital* (2015)

239 Cal.App.4th 399, 410.) Instead, the court

disregards the moving party's conflicting evidence, assumes the truth of the

nonmoving party's evidence, and resolves all presumptions, inferences,

conflicts, and doubts in the nonmoving party's favor. (See *Dina*, supra, at 1047; see

also *Jumaane v. City of Los Angeles* (2015)

241 Cal.App.4th 1390, 1399.)

Discussion

As

a preliminary matter, the court determines whether it may decide the issues

subject to LA Metro's motion under Code of Civil Procedure section

1260.040. Under that statute, the issue

must be an evidentiary or legal issue that affects the determination of

compensation. (Code Civ. Proc., §

1260.040, subd. (a).

LA

Metro's motion requests that the court determine issues related to the

property's access to Valley Boulevard. (See

Mot., p. 2.) Whether a property has

legal access to a public street directly impacts its value, and in turn, the value of just compensation for the property.

(See *City of Los Angeles v. Ricards* (1973) 10 Cal.3d 385, 388, commenting, "Property which requires substantial expenditure to establish access thereto is obviously worth less to a potential buyer than the identical property with access already provided.")

Courts may determine factual issues in a motion under Section 1260.040, including those dealing with the physical characteristics and configuration of real property. (See, e.g., *Dina v. Dept. of Transportation* (2007) 151 Cal.App.4th 1029, 1034.)

Therefore,

the court finds that the issues regarding whether the property abuts Valley Boulevard and whether the property has a legal means of accessing Valley Boulevard are the proper subject of a motion for determination under Section 1260.040.

Whether

the Property Abuts Valley Boulevard

LA

Metro argues that the court must determine that the property does not abut Valley Boulevard. The court disagrees.

“The

urban landowner enjoys property rights, additional to those which [they]

exercise[] as a member of the public, in the street upon which [their] land

abuts. Chief among these is an easement of

access in such street. This easement

consists of the right to get into the street upon which the landowner's

property abuts and from there, in a reasonable manner, to the general system of

public streets.” (Breidert v.

Southern Pacific Co. (1964) 61 Cal.2d 659, 663; Williams v. Los Angeles

Ry. Co. (1907) 150 Cal. 592, 594, noting that a property fronting the street

has right of ingress and egress; Bacich v. Bd. of Control (1943) 23

Cal.2d 343, 351–352, stating that abutters' rights include the right to access

the abutting street and the next intersecting street in order to access other

public streets.) A property owner cannot

claim an impairment of an abutters' right of access unless the property

“directly” abuts a public street. (Martis

Camp Community Assn. v. County of Placer (2020) 53 Cal.App.5th 569, 609–611.)

LA

Metro presents a diagram prepared by its engineer depicting the property. (See 12/17/2025 Haigh Decl., ¶

3.) According to the diagram, the Foxes'

property, labeled “fee acquisition,” does not abut Valley Boulevard; there is

empty space between the property and the street. (12/17/2025 Haigh Decl., Exh. 1, p. 5.)

In

opposition, Russell L. Fox presents a copy of the director’s deed and data sheet

that the California Department of Transportation (Caltrans) provided him when the

Foxes purchased the property. (See 5/29/2026

R. Fox Decl., ¶ 2.) According to the

director’s deed, one entire side of the property begins and ends at the

“Northeasterly line of Valley Boulevard.”

(5/29/2026 R. Fox Decl., Exh. 1, p. 4.)

According to the data sheet, “[a]ccess” to the property “is from Valley

[Boulevard].” (5/29/2026 R. Fox Decl.,

Exh. 1, p. 8.) The data sheet also

contains a diagram that depicts the property next to a line labeled “Valley . .

. Blvd.” without any space in between the property and the line. (5/29/2026 R. Fox Decl., Exh. 1, p. 9.) The Foxes also present evidence compiled and

labeled by their engineer, including a preliminary title report. (See 5/29/2026 Vahid Decl., ¶ 3.) The title report repeats the description of

the property from the director’s deed noting that the property begins and ends

at Valley Boulevard. (Compare 5/29/2026

Vahid Decl., Exh. 6, pp. 22, 28 with 5/29/2026 R. Fox Decl., Exh. 1, p.

4.)

On

this record, there is a conflict in the evidence on whether the property

directly abuts Valley Boulevard, which the court must resolve in favor of the

Foxes as the nonmoving party. Thus, the

court cannot determine whether the property does not directly abut Valley

Boulevard.

Whether

the Property Has a Legal Means of Accessing Valley Boulevard

LA

Metro argues that the court must determine that the property does not have a

legal means of accessing Valley Boulevard because regulations preclude the

installation of a legal access point.

The court disagrees.

“[Caltrans]

shall have full possession and control of all state highways and all property

and rights in property acquired for state highway purposes.” (Sts. & Hy. Code, § 90.) “No state agency shall issue, utilize,

enforce, or attempt to enforce any guideline, criterion, bulletin, manual,

instruction, order, standard of general application, or other rule, . . .

unless [it] has been adopted as a regulation and filed with the Secretary of

State pursuant to this chapter.” (Gov.

Code, § 11340.5, subd. (a).)

LA

Metro’s evidence demonstrates that the property is across the street from a

ramp to Interstate 605. (See 12/17/2025

Haigh Decl., Exh. 1, p. 5.) The Foxes do

not argue in opposition that Interstate 605 is not a freeway, that their

property is not across Valley Boulevard from a ramp from Interstate 605, or

that Caltrans has the authority to deny access permits near freeway

interchanges. (See generally Opp.;

see also *Moulton Niguel Water Dist. v. Colombo* (2003) 111 Cal.App.4th

1210, 1215, stating that “[c]ontentions are waived when a party fails to

support them with reasoned argument and citations to authority.”)

Instead,

the Foxes focus on access to Valley Boulevard and emphasize that Valley

Boulevard is a public street, not a freeway.

(See Opp., pp. 13, 16.) The Foxes

argue that since the Caltrans Highway Design Manual was not adopted as a

regulation and filed with the Secretary of State, LA Metro cannot enforce its

provisions against the Foxes. (See Opp., p. 13.) Nevertheless,

Caltrans may use the manual to determine whether to deny vehicle access to the
Foxes' property because of its location in relation to the Interstate 605 ramp.

Even so, the relevant section of the manual states,

Access rights

shall be acquired along interchange ramps to their junction with the nearest

public road. . . . For new construction

or major reconstruction, access rights shall be acquired on the opposite side

of the local road from ramp terminals to preclude driveways or local roads

within the ramp intersection. This

access control would limit the volume of traffic and the number of phases at

the intersection of the ramp and local facility, thereby optimizing capacity

and operation of the ramp. Through a

combination of access control and the use of raised median islands along the

local facility, right-in/right-out access may be permitted beyond 200 feet from

the ramp intersection. (1/7/2025 Haigh Decl., Exh. B, pp. 6–7.)

LA Metro emphasizes that according to this

provision, Caltrans may deny a property across the street from a freeway ramp

from accessing the street. (See Mot.,

p. 8; see also 12/17/2025 Haigh Decl., Exh. 1, p. 5, depicting the

property in relation to the Interstate 605 ramp.) However, even if the court accepts LA Metro's

contention that the access control restrictions extend across the entire length

of the property's potential access to Valley Boulevard, LA Metro nevertheless

concedes that "it falls within Caltrans' discretionary authority to apply

access control. . . ." (Reply, p.

9.) In other words, while the manual

permits Caltrans to deny access to Valley Boulevard from the Foxes' property,

the manual does not preclude access to Valley Boulevard from the property as a

matter of law; it is a matter of Caltrans's discretion. Even though LA Metro states that the project

exceptions it received for vehicle access to Valley Boulevard are "prospective

and legally distinct," the existence of exceptions at least suggests that

Caltrans sometimes exercises its discretion to allow access to public streets

across the street from freeway ramps.

(Reply, p. 9.)

On

this record, the court cannot conclude as a matter of law that the Caltrans

Highway Design Manual precludes access to Valley Boulevard. Thus, the court does not determine that the

property does not have a legal means of accessing Valley Boulevard.

Therefore,

the court DENIES the motion for determination.

CONCLUSION

For

these reasons, the motion for determination of legal issues re: impairment of

access is DENIED.